

111	McGrew v. Heimbuch, 2025-01535253	MOTION FOR LEAVE TO FILE DEMURRER – CONTINUED TO 09/28/2026
112	Nguyen v. Ky, 2024-01380521	DEMURRER – SUSTAINED IN PART WITHOUT LEAVE TO AMEND AND OVERRULED IN PART Defendant Haiky Nguyen (“Defendant”) demurs to the First Amended Complaint (FAC) of plaintiff Tuan Nguyen (“Plaintiff”). Demurrer to Entire FAC Defendant argues that all of the claims, even if valid, were discharged by a voluntary Chapter 7 petition filed by Defendant on October 28, 2022. “A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer.” (Code Civ. Proc., § 430.41(b).) Here, Defendant could have raised the argument regarding the bankruptcy discharge in the Demurrer to the initial Complaint but failed to do so. Therefore, the Demurrer on this ground is OVERRULED. Fraud and Deceit Defendant argues that the fraud and deceit cause of action fails because the FAC still does not plead how or by what means the alleged promise was communicated or that Defendant made any promise without an intent to perform. In sustaining the prior Demurrer, the Court held the fraud and deceit cause of action was insufficient because there was no allegation that Defendant did not intend to perform the promise at the time she made it. The FAC alleges that Defendant knew her representation that she intended to repay the loan was false but does not allege any facts showing how, when, where, to whom, and by what means the representation was tendered. Thus, the cause of action remains insufficiently pled. (Beckwith v. Dahl (2012) 205 Cal.App.4th 1039, 1060.) Thus, the